



**JHABUA
POWER**

**Jhabua Power Ltd
(A Joint Venture of NTPC Ltd)**

SECTION – II INSTRUCTION TO BIDDERS (ITB)

INSTRUCTIONS TO BIDDERS
(ITB) TABLE OF CLAUSES (ITB)

S.NO.	DESCRIPTION	PAGENO.
	PART A-GENERAL	3
1.0	INTRODUCTION	3
2.0	SOURCE OF FUNDS.....	3
3.0	CONFLICT OF INTEREST	3
4.0	BIDDER'S SITE VISIT	3
	PART B -BIDDINGDOCUMENTS	3
5.0	CONTENT OF BIDDING DOCUMENTS	3
6.0	CLARIFICATION OFBIDDING DOCUMENTS.....	5
7.0	PRE-BID CONFERENCE (<i>If specified in the NIT/Tender Enquiry</i>).....	5
8.0	ADDENDA/ CORRIGENDA/ AMENDMENTS TO BIDDING DOCUMENTS	6
	PART C – PREPARATION OF BID	6
9.0	COST OF BIDDING	6
10.0	LANGUAGE OF BID AND UNITS OF MEASURE	6
11.0	DOCUMENTS COMPRISING THE BID	6
12.0	BID PRICES AND PRICE BASIS	12
13.0	BID VALIDITY	13
14.0	BID SECURITY / GUARANTEE /EARNESTMONEY.....	13
15.0	WORK SCHEDULE	14

PART D – SUBMISSION OF BID.....	14
16.0 SUBMISSION OF BID.....	15
17.0 ON LINE SUBMISSION	
18.0 DEADLINE FOR SUBMISSION OF BID.....	17
19.0 LATE BID SECURITY AND INTEGRITY PACT.....	17
20.0 MODIFICATION, SUBSTITUTION AND WITHDRAWAL OF BID	17
 PART E - BID OPENING AND EVALUATION	 18
21.0 BID OPENING.....	18
23.0 EVALUATION AND COMPARISON OF BIDS.....	18
23.1 BID EVALUATION	18
 PART F – AWARD OF CONTRACT	 20
24.0 AWARD CRITERIA	20
25.0 EMPLOYER’S RIGHT TO ACCEPT OR REJECT ANY OR ALL BIDS	20
26.0 LETTER OF AWARD	20
27.0 SIGNING OF CONTRACT AGREEMENT.....	20
28.0 INELIGIBILITY FOR FUTURE TENDERS	21
29.0 ADHERENCE TO FRAUD PREVENTION POLICY.....	21
30.0 DECLARATION ON BANNING POLICY	22

INSTRUCTIONS TO BIDDERS (ITB)

NOTE:

A. SUBMISSION OF DOCUMENTS – **ON LINE**

S. No.	Content	Folder / Cover
1	Instrument of Tender Fee / Bid Security (EMD)	EMD Cover (Details to Payment Receipt to be uploaded)
2	All Documents regarding Qualifying Requirement, All Forms & Formats, Technical Documents(scope of works, Terms & Conditions), and other all documents in line with Tender Enquiry except Price Bid.	Technical Cover (ON LINE)
3	Price Bid	Financial Cover (ONLINE)

B. ON LINE SUBMISSION:

- (i) Instrument of Tender Fee (As specified in NIT / Tender Enquiry)
- (ii) Instrument of Bid Security / EMD (As specified in NIT / Tender Enquiry)
- (iii) Authority to Sign / Power of Attorney

Note: Detail procedure for On-Line Submission (in Sealed Enevelop) of above documents is mentioned at Part D of ITB.

PART A - GENERAL

1.0 INTRODUCTION

- 1.1 NTPC-Jhabua Power Ltd., (here in after called “NTPC-JPL” or “Employer”), wishes to receive bids for the Package named in NIT/IFB/Tender Enquiry.
- 1.2 Throughout these Bidding Documents, the term “Bid” and “Tender” and their derivatives (Bidder/Tenderer, Bidding/Tendering, Bidding Document/Tender Document, etc.); Bill of Quantity / Schedule of Quantity / Schedule of Quantities/ Bill of Quantities; Employer / JPL; Bid Security / Earnest Money Deposit; Security Deposit / Performance Security/ Performance Guarantee; Engineer-in-Charge / Engineer, appearing anywhere in the Bidding Documents shall have the same meaning and are synonymous to each other.

2.0 SOURCE OF FUNDS

Expenditure under this package is intended to be funded from internal resources.

3.0 CONFLICT OF INTEREST

- 3.1 Each Bidder shall submit only one bid either by himself, or as a partner in a joint venture or consortium, if so permitted in the Bidding Documents. A Bidder who submits or participates in more than one bid in this bidding will be disqualified from the bidding.
- 3.2 Bidders should not be associated, or have been associated in the past, directly or indirectly, with a firm or any of its affiliates that has been engaged by the Employer to provide consultancy services for the preparation of the design, specifications, and other documents to be used for the execution of Works under this Invitation for Bids.
- 4.0 **BIDDER’S SITE VISIT:** The Bidders are advised to visit the Site to familiarize themselves with the nature and quantum of work and site condition and obtain all necessary information as to risks, contingencies and other circumstances which may influence or affect his tender. No extra charges consequent on any misunderstanding or otherwise shall be allowed.

PART B - BIDDING DOCUMENTS

5.0 CONTENT OF BIDDING DOCUMENTS

The set of Bidding Documents issued for the purpose of bidding includes one set of the following, which should be read in conjunction with amendments, if any, issued in accordance with **ITB Clause 8.0** below.

Section

- | | |
|-----|---|
| I | Invitation for Bids (IFB)/Tender Enquiry/Notice Inviting Tender (NIT) |
| II | Instructions to Bidders(ITB) |
| III | Special Conditions of Contract (SCC) |

IV General Conditions of Contract**(GCC)****V Scope of Works and Terms & Conditions****VI Schedule of Quantities (SOQ) / Bill of Quantities****(BOQ)****VII Forms and Procedures****VIII Quality plan**

Transfer of Bidding documents purchased by one intending bidder to another is not permissible.

- 5.1** The Bidder is expected to examine all instructions, forms, terms, conditions and specifications in the Bidding Documents, before submission of his bid. Failure to furnish all information or documentation required by the Bidding Documents may result in the rejection of such bid.

5.2 Qualifying Requirements:

The qualifying requirements for the tender are specified in the NIT / Tender Enquiry.

5.3 Documents in support of meeting Qualifying Requirements

Bidders are required to submit documents to satisfactorily establish their meeting the Qualifying Requirements stipulated in the tender.

5.4 Bid Drawings: (Refer Technical Specification for details).

The Bidder is requested to refer the Technical Specifications for the provisions in this regard.

6.0 CLARIFICATION OF BIDDING DOCUMENTS

A prospective Bidder requiring any clarification of the Bidding Document shall put the query under "Clarification" within 7 days from date of collection of Tender. EMPLOYER will respond to any request for clarification or modification of the bidding documents that it receives within the time line specified. Expected time lines for Employer to respond within 5 days.

Bidders must check the Clarifications issued before submission of Bid. Should the Employer deem it necessary to amend the Bidding Document as a result of a clarification.

7.0 PRE-BID CONFERENCE: Not Applicable

- 7.1** The Bidders are required to submit their questions/ clarifications/queries etc. in writing including by way of email from the registered email Id so as to reach the Employer at least 3 days before the due date.

8.0 ADDENDA/ CORRIGENDA/ AMENDMENTS TO BIDDINGDOCUMENTS

At any time prior to the deadline for submission of bids, EMPLOYER may, for any reason,

whether at its own initiative, or in response to a clarification requested by a prospective Bidder, amend the bidding documents.

To give prospective Bidders reasonable time to take the amendment into account in preparing their bid, EMPLOYER may, at its discretion, extend the deadline for the submission of bids.

PART C - PREPARATION OF BID

9.0 COST OF BIDDING

- 9.1** The Bidder shall bear all costs associated with the preparation and submission of his bid and the Employer will in no case be responsible or liable for these costs, regardless of the conduct or outcome of the bidding process.

10.0 LANGUAGE OF BID AND UNITS OF MEASURE

- 10.1** The bid and all correspondence and documents relating thereto exchanged by the Bidder and the Employer shall be written in English. Supporting documents and printed literature furnished by the Bidder may be in another language provided they are accompanied by an appropriate translation of pertinent passages into English, in which case, for the purpose of interpretation of the bid such translations shall govern.
- 10.2** The units of measurement shall be metric system of measures, unless otherwise specified elsewhere.

11.0 DOCUMENTS COMPRISING THE BID

- 11.1** The bid submitted by the Bidder shall interalia comprise of the following documents:
- (a) Bid Form duly completed and signed by the Bidder, together with all Attachments identified in **ITB Sub-Clause 11.2** below.
 - (b) Schedule of Quantities
- 11.2** Bidding procedure shall be as specified in the NIT // Enquiry Documents.
- 11.3** Each Bidder shall submit with his bid the following attachments:

11.3.1 TECHNO-COMMERCIAL BID

(a) Attachment 1: Bid Security (Envelop 1)

Bid Security shall be furnished in accordance with ITB Clause 14 in a separate sealed envelope. Bid not accompanied by the requisite Bid Security in a separate sealed envelope, or bid accompanied by Bid Security of insufficient value, shall not be entertained and in such case, the bid shall not be opened and rejected pursuant to ITB Sub-Clause 14.4.

(b) Attachment 2: Authority to Sign the Bid.

The Bidder shall furnish the following to check that the person(s) signing the bid has/have the authority to sign the bid and thus establish that the bid is binding upon the Bidder during the full period of its validity in accordance with **ITB Clause No.13**.

- i) In case of Sole Proprietorship Concern/Partnership Firm, Specimen signature of the Proprietor/all the partners duly attested by a scheduled Bank or First Class Magistrate.

- ii) In case of Private Limited Companies, Copy of Power of Attorney issued by Competent Officer under the common seal of the Company, authorizing the person to sign the bid/ execute contracts/agreements etc duly notarized
- iii) In case of Public Limited Companies and Statutory Corporations, Board resolution authorizing the Executive to sign the bid/ contracts/agreements and affix common seal thereon in accordance with the provisions of Article of Association of the Company OR Power of Attorney issued by Competent Officer under the common seal of the Company authorizing the person to sign the bid/ execute contracts/agreements etc.
- iv) In case of Joint Venture/Consortium, Satisfactory evidence of authority of the person signing on behalf of the Bidder shall be furnished with the bid.

(c) Attachment 3: Bidder's Qualifications Technical Cover

Documentary evidence establishing that the Bidder meets the Qualifying Requirements stipulated in the NIT/IFB including the following shall be furnished in **Attachment-3** to the bid:

(A) Legal Status of the Company

1. In case of Sole Proprietorship Concern

- i) The full name of an individual proprietor, his/her parentage, documentary proof of his/her age, permanent address and present postal address/ contact details.
- ii) A deed of declaration by the Proprietor, that no other individual or company has any share in the concern.

2. In case of Partnership Firm

- i) Certified photocopy of the Partnership Deed, with up to date amendments (if any).
- ii) Registration certificate issued by the Registrar of Companies concerned, if any.
- iii) In case of change in the constitution of the firm due to retirement or death or addition of an incoming partner, photocopy of Deed of Dissolution, fresh registration Certificate and the fresh / extant Partnership Deed, as applicable.

3. In case of Private Limited Companies

- i) Certified to be true and up to date amended copy of Memorandum and Articles of Association of the Company.
- ii) Certificate of incorporation of the Company.

4. In case of Public Limited Companies and Statutory Corporations.

- i) Certified to be true copy of Memorandum and Articles of Association of the Company and/or the relevant Statute/Act.
- ii) Certificate of Incorporation of the company - In case of public limited Co. only.
- iii) Certificate of Commencement of Business - In case of public limited Co. only.

5. In case of Consortium/ Joint Venture bid

- i) The information listed in Qualifying Requirements in NIT/IFB/Tender Enquiry shall be submitted for each Joint Venture or Consortium partner.
- ii) The bid, shall be signed so as to be legally binding on all partners;
- iii) One of the partners shall be nominated as being in charge and shall be designated as leader; this authorisation shall be evidenced by submitting with bid, a power of attorney signed by legally authorised signatories of all the partners;
- iv) An authorization authorizing the leader to incur liabilities and receive instructions for and on behalf of any and all partners of the Joint Venture or Consortium and the entire execution of the Contract including payment to be done exclusively with the leader;
- v) All partners of the Joint Venture shall be liable jointly and severally for the execution of the Contract in accordance with the Contract terms, and a relevant statement to this effect shall be included in the authorisation mentioned under (iii) above as well as in the Bid Form and in the Agreement (in the case of a successful bid);
- vi) Joint Venture / Consortium Agreement entered into by the Joint Venture or Consortium partners shall be submitted with the bid. The Joint Venture or consortium Agreement shall clearly specify the work and responsibility of each partner or a notarised copy.
- vii) A copy of the Partnership Deed/Memorandum & Articles of Association/Certificate of incorporation as the case may be of the prime bidder and all the Partners of Joint Venture / Consortium shall also be enclosed.

(B) Financial Status

In support of meeting the Financial criteria specified in the Qualifying Requirements stipulated in the NIT/IFB/Tender Enquiry, the following documents shall be furnished with the bid:

- 1. Audited Financial results of preceding 3 financial years or Balance Sheet and Profit & Loss account statement of preceding 3 financial years duly certified by a Chartered Accountant.
- 2. Solvency Certificate from Bankers, issued not earlier than fifteen (15) days prior to the scheduled date of bid opening of the Package, if asked for in the NIT / Tender Enquiry.

(C) Proof of Execution of Works

In support of meeting the work execution requirements specified in the Qualifying Requirements stipulated in the NIT/IFB/Tender enquiry, the following documents shall be furnished with the bid

- i). Copies of the Letter of Award/Purchase orders/Contracts

ii). Certificate (s) from the Client(s) for successful execution of the assignment with value and period of execution.

(D) Other requirements specified in the Qualifying Requirements.

In support of meeting the other requirements specified in the Qualifying Requirements stipulated in the NIT/IFB/Tender enquiry, the documents specified in the SCC shall be furnished with the bid.

The documentary evidence of the proposed sub-contractor's qualifications against the sub qualifying requirements if so specified in the bidding documents shall also be furnished in **Attachment - 4.** - See Sub-Clause (d) below.

Notwithstanding anything stated above, the Employer reserves the right to undertake a physical assessment of the capacity and capabilities including financial capacity and capability of the Bidder / his Collaborator(s) / Associate(s) / Subsidiary(ies) / Group Company(ies) to perform the Contract, should the circumstances warrant such assessment in the overall interest of the Employer.

The physical assessment shall include but not be limited to the assessment of the office/facilities/banker's/reference works by the Employer. A negative determination of such assessment of capacity and capabilities may result in the rejection of the Bid.

The above right to undertake the physical assessment shall be applicable for the qualifying requirements stipulated in the bidding documents.

d) **Attachment 4: Subcontractors Proposed by the Bidder: NOT APPLICABLE**

e) **Attachment 5: Equipment/ Machinery deployment Schedule: As applicable**

The Bidder shall indicate the quantum and schedule of the equipment/ machinery/ lab equipment etc. he proposes to deploy for the Work under this bid.

f) **Attachment 6: General Declaration of Bidder**

Declaration that the Bidder has carefully examined the Bidding Documents in totality and his authorized personnel have visited the site for assessment of all factors for the purposes of bidding.

g) **Attachment 7: Electronic Fund Transfer (EFT) Authorization Form**

Authorization Form for release of payments through Electronic Fund Transfer System.

h) **Attachment 8: Details of PF, ESI, PAN and GST Regn.**

The details of registration for PF, ESI, PAN and GST Regn. to be furnished.

(i) **Attachment 9: Declaration Regarding GST**

The bidder shall necessarily declare as part of his bid, the scheme which the bidder has adopted for calculation of GST in Attachment 9 of Forms & Procedures Section VII).

(j) **Attachment 10: Technical Compliance** The bidder shall essentially confirm compliance to the scope of work **(Section V)**

(k) **‘NIL’ Deviations Certificate**

No deviation, whatsoever, is permitted by the Employer to any provisions of Bidding Documents.

The acceptance of above is an attribute of the ON-Line Bid Invitation and the Bidders are required to confirm acceptance of the same by accepting the following attribute:

“Do you certify full compliance to all provisions of Bid Documents”

Acceptance of above attribute shall be considered as bidder's confirmation to the following:

- (a) The provisions of Bidding Documents read in Conjunction with Amendment(s)/ Clarification(s)/ Addenda/ Errata (if any) are acceptable and no deviation has been taken in this regard.
- (b) Any deviation to Bidding Documents and its subsequent Amendment(s)/ Clarifications(s)/ Addenda/ Errata/ Minutes of Clarification Meeting (if any) as mentioned at (a) above found anywhere in Price Bid Proposal, implicit or explicit, shall stand unconditionally withdrawn, without any cost implication whatsoever to Employer, failing which the bid security shall be forfeited.

(l) **Declaration on Qualifying Requirements** Declaration by the Bidder towards compliance on "Qualifying Requirements" by accepting the attribute in the On-Line Bid.

“Do you certify full compliance on Qualifying Requirements”

Acceptance of above attribute shall be considered as bidder's confirmation to the following conditions:

- (a) The number of reference Plants/Orders quoted by Bidder in **Attachment- 3** of the bid, for establishing compliance to the specified Qualifying Requirement (QR), are in accordance with the provision specified above.
- (b) The reference Plants/ Orders/ declared, shall only be considered for evaluation/ establishing compliance to Qualifying Requirement (QR). Any reference Orders declared more than as specified above shall not be considered for evaluation/establishing compliance to Qualifying Requirements.
- (c) No change or substitution in respect of reference Plants/Orders for meeting the specified Qualifying Requirement (QR) shall be offered by the bidder.

(m) **Declaration on Banning Policy** Declaration to the effect that the Bidder shall abide by Banning Policy of the Employer displayed on NTPC's website <http://www.ntpctender.ntpc.co.in> indicating his compliance to the provisions of **ITB Sub-Clause 32** to be furnished by accepting the following GTE condition:

“Do you accept Withholding and Banning of Business Dealing Policy of NTPC”

(n) **Declaration on Fraud Prevention Policy**
(o)

Declaration to the effect that the Bidder shall abide by Fraud Prevention Policy of the Employer displayed on NTPC's website <http://www.ntpctender.ntpc.co.in> indicating his compliance to the provisions of ITB Sub-Clause 29 to be furnished by accepting the following condition:

“Do you accept the Fraud Prevention Policy of NTPC”.

Note:

- l) **Techno-Commercial Bid should not contain any price content entry. In case, the Techno-Commercial Bid is found to contain any price content, such bid shall be liable for rejection.**

PRICE BID**(a) Prices**

Prices should be quoted as per the format enclosed. Applicable GST percentage % rate shall be mentioned by vendor under respective category.

- 11.4** Filling the information in the attachments with answers like “shall be given later” “or” “shall be mutually discussed and finalized” or “information already submitted at the time of enlistment” etc. shall not be accepted. Even if the information required in the attachments has been given in response to any other recent invitation for bids of the Employer or in some other reference, it is mandatory for the Bidder to give the information along with his bid as asked for. Non-compliance with the above or leaving the attachment(s) blank may lead to the rejection of the bid. The information furnished by the Bidder should be consistent, correct and true. The Employer reserves the right to verify the information given and if found incorrect, the bid may be rejected.

- 11.5 A conditional Price Bid shall run the risk of rejection.**

- 11.6** Price Bid should not contain any matter in respect of Technical and / or Commercial aspects other than the details specifically sought in the Price Bid.

12.0 BID PRICES AND PRICE BASIS

- 12.1** Unless otherwise specified in the Technical Specifications, Bidders shall quote for the entire facilities on a “single responsibility” basis such that the total bid price covers all the Contractor’s obligations mentioned in or to be reasonably inferred from the bidding. Bidders shall give a breakdown of the prices in the manner and detail called for in the On Line Price Schedules.

- 12.2** The currency of the bid and currency of payment shall be in Indian Rupees until unless specified otherwise in the SCC.

- 12.3** The Bidder shall fill in unit rates/prices for all items of Works described in the Bill of Quantity (BOQ). The rates/prices quoted in the Bill of Quantity shall also be deemed to include any incidentals not shown or specified but reasonably implied or necessary for the proper completion and functioning of the specified Works in accordance with the Bidding Documents. Items of the work described in the Bill of Quantity (BOQ) for which no rate or price has been entered therein by the Bidder, shall also be considered as an Abnormally Quoted item and shall be governed by the relevant provisions of ITB Sub-Clause 23.4.

The successful bidder if awarded the contract shall take sufficient care in moving the plants equipment and materials from one place to another so that they do not cause any damage to any person or the property of employer or 3rd party including overhead and underground cables/pipelines. In the event of such damage including eventual loss of operation and operation of the plant or services in any plant or establishment as estimated by the employer or adjusted by third party shall be borne by the Contractor.

- 12.4** The rates/amount quoted in the Bill of Quantity (BOQ) shall be exclusive of all GST and all

other taxes & duties as per GCC Clause 26.0. However, levies, royalty, fees, labor cess etc., if any, shall be included in the price as per GCC Clause 26.0. In case bidder does not mention GST in GST column provision, other relevant Charges in this regard provision in tender document shall be applicable.

In the Bill of Quantity (BOQ) provided, the bidder shall quote the prices, taxes etc. as asked for in the BOQ.

12.5 The Bidder shall be responsible for payment of any tax levied on the transfer of property and goods involved in the **'Composite / Works Contract'** in accordance with the applicable GST Law or applicable Act or Notification(s) by the State or Central Government or other authorities and rules made there under including amendments, if any. The liability on account of such tax as per the rates of tax prevailing as on seven (7) days prior to the date of bid opening is to the account of the Contractor. In case of any variation in the rates of the tax after the date seven (7) days prior to date of bid opening, the same shall be paid/ reimbursed to the Contractor subject to submission of documentary evidence and proof of having made the payment at the revised rate.

12.6 The bidder shall necessarily declare as part of his bid, the scheme which the bidder has adopted for calculation of Goods & Service Tax in Attachment 9 of Forms & Procedures (Section VII). In case the bidder has opted for Works Contract/Composite Scheme for payment of Goods & Service Tax, the estimated value of Owner Issue Materials, if any, to be considered for working out GST liability as part of the Bid Price as indicated in SCC. The bidder shall not be allowed to change the declared method of calculation GST subsequently. In case of any variation between the estimated value and actual value of Owner Issue Material during the execution of the contract, an equitable adjustment of the contract price shall be made by addition/deletion of the contract price in case of Works Contract /Composite Scheme of Goods & Service Tax.

13.0 BID VALIDITY

13.1 The Bidder shall keep his bid valid for a period of 120 **days from the date of opening of the techno-commercial bid, unless otherwise specified in the SCC / ITB**, during which period the Bidder agrees not to vary, alter or revoke his bid either in whole or in part.

13.2 In exceptional circumstances, prior to the expiry of the original bid validity period, the Employer may request the Bidders to extend the period of validity for a specified additional period. The request and the responses thereto shall be made in writing. A Bidder agreeing to the request will not be permitted to modify his bid, but will be required to extend the validity of his bid security for the period of the extension.

14.0 BID SECURITY

14.1 The Bidder shall furnish, as part of its Bid, a Bid Security in a separate sealed envelope for the amount and currency as stipulated in the Bid Data Sheet (BDS). In case bid security amount is deposited as EFT, Proof of e-payment of Bid Security, shall be submitted in a separate sealed envelope

***“ORIGINAL BID SECURITY FOR (NAME OF PACKAGE)
SPECIFICATION NO. DUE ON (DATE OF BID OPENING) FROM
..... (NAME OF THE BIDDER).”***

14.2 The Bid Security shall, at the Bidder's option, be in the form of Electronic Fund Transfer (EFT)/

DD from any of the banks specified in the forms and format section-VII payable at location as specified in the SCC / NIT.

Upon successful e-payment of the Bid Security, e-receipt shall be generated by the system, a copy of which is to be submitted by the bidder as a part of its bid,

- 14.3** Wherever Bids under Joint Venture route are permitted as per the Qualifying Requirements in the Bidding Documents, the Bid Security by the Joint Venture must be on behalf of all the partners of the Joint Venture.
- 14.4** Any bid not accompanied by an acceptable bid security in a separate sealed envelope shall be rejected by the employer as being non-responsive and shall not be opened. In case, the bid security is submitted as EFT, bidder to submit the proof of e-payment of bid security in separate sealed envelope. Further Stage-II (Price Bid) (in case of Two Stage bidding) not accompanied by requisite bid security extension (in case Bid Security is submitted in the form of BG) in a separate sealed envelope shall be rejected by the Employer as being non- responsive and shall not be opened.
- 14.5** Subject to clause 14.7 below, the Bid Security of the Bidder whose Techno-Commercial Bid has not been found acceptable, shall be returned along with letter communicating rejection of Techno-Commercial Bid. The Bid Security of the bidders who are unsuccessful after opening of Price Bids shall be returned expeditiously.
- 14.6** The Bid Security of the successful Bidder to whom the contract is awarded will be returned when the said Bidder has signed the Contract Agreement and has furnished the required Performance Securities pursuant to relevant clauses of ITB.
- 14.7** The Bid Security may be forfeited
- a) If the Bidder withdraws or varies its Bid during the period of Bid validity;
 - b) If the Bidder does not accept the correction of its Bid Price pursuant to ITB Sub- Clause for Arithmetical Correction.
 - c) If the Bidder refuses to withdraw, without any cost to the Employer, any deviation, variation, additional condition or any other mention anywhere in the bid (Price bid in case of Two Stage Bid), contrary to the provisions of bidding documents;
 - d) In the case of a successful Bidder, if the Bidder fails within the specified time limit to furnish the required Contract Performance Guarantee/Security Deposit in accordance with relevant clause of ITB.
 - e) If the bidder/his representatives commit any fraud while competing for this contract pursuant to Fraud Prevention Policy of NTPC.
 - f) In case the Bidder/Contractor is disqualified from bidding process in terms of Section 3 and 4 of Integrity Pact (IF APPLICABLE).
- 14.8** No interest will be payable by the Employer on the said amount covered under Bid Security.

15.0 WORK SCHEDULE

The entire Work covered under the contract of this bid shall be completed within the time

specified in the **SCC and further elaborated in the Technical Specifications**. The Work shall be performed in time and to achieve the targets, the Contractor shall have to plan adequate mobilization of all resources.

PART D - SUBMISSION OF BID

16.0 SEALING AND MARKING OF BID

Bid shall be submitted through ON Line mode in the manner specified elsewhere in bidding document.

16.1 Documents to be submitted in On Line Form (as brought out at ITB clause 11.3.1) shall be sealed and marked in the following manner:

- (i) The **Tender Fee and Bid Security / Earnest Money Deposit** furnished in accordance with ITB Clause 14 shall be sealed in a separate envelope duly marking the envelope as **"ATTACHMENT-1: BID SECURITY"**. In case if Tender Fee is applicable; same shall also be mentioned on Envelope.
- (ii) The **Power of Attorney** furnished in accordance with ITB Clause 11.3.1(b) shall be sealed in a separate envelope duly marking the envelope as **"ATTACHMENT-2: POWER OF ATTORNEY"**.
- (iii) The **Deed of Joint Undertaking (if applicable)** as per relevant attachment shall be sealed in a separate envelope duly marking the envelope as **"DEED OF JOINT UNDERTAKING"**
- (iv) The **Joint Venture/ Consortium Agreement (if applicable)** as per relevant attachment shall be sealed in a separate envelope duly marking the envelope as **"JOINT VENTURE / CONSORTIUM AGREEMENT"**
- (v) The **'Integrity Pact' (if applicable)** as per **ATTACHMENT-11** duly signed by the signatory authorized to sign the bid, shall be sealed in a separate envelope entitled **"ATTACHMENT- 11: INTEGRITYPACT"**.

The envelopes shall then be sealed in **an Outer Envelope**.

16.2 The inner and outer envelopes shall:

- (a) Be addressed to the Employer at the address given in the NIT/Tender Enquiry/SCC, and
- (b) bear the Package name indicated in the NIT/Tender Enquiry, the Invitation for Bids number indicated in the NIT/Tender Enquiry, and the statement "DO NOT OPEN BEFORE [date]," to be completed with the time and date specified in the NIT/Tender Enquiry, pursuant to **ITB clause16**.

16.3 The inner envelopes shall also indicate the name and address of the Bidder.

16.4 If the outer envelope is not sealed and marked as required by ITB Sub-Clause 16.2 above, the Employer will assume no responsibility for its misplacement.

17.0 On Line BID SUBMISSION - Bidders are requested to submit offer / proposal On Line.

For information Office is :
C&M Department
Jhabua Power Ltd.

(A Joint Venture of NTPC Ltd.)
Village - Barela,
Tehsil - Ghansore,
District - Seoni (Madhya Pradesh)
Pin - 480997

(A) TECHNO-COMMERCIAL BID

(I) Sealed Envelope 1 : Bid Security EMD and
Tender Fee

(II) Sealed Envelope 2 : Technical Bid - UNPRICED

- a) Attachment1: Bid Form
- b) Attachment 1A: BID Security (EMD)
- c) Attachment2: Authority to sign the bid
- d) Attachment3: Bidders Qualification Documents
- e) Attachment 4 : Equipment / Machinery deployment schedule
- f) Attachment5: General Declaration
- g) Attachment6: Electronic Fund Transfer (EFT) Form
- h) Attachment7: Details along with Copy of PF and ESI registration, PAN and GST number
- i) Attachment8: Declaration Regarding GST
- j) Attachment9: compliance to scope of work etc.(Technical details & data sheet)
- k) Attachment10: Integrity Pact
- l) Attachment 11 : Documents as asked in the SBD/SCC/Technical Specifications. Complete Technical Document duly signed and Stamped.
- m) No deviation Statement

(III) Sealed Envelope: PRICE BID: In the Bill of Quantity (BOQ) provided, the bidder shall quote the prices; taxes etc. as asked for.

18.0 DEADLINE FOR SUBMISSION OF BID

18.1 Bid (Documents mentioned are requested to be submitted ON LINE. As referred in the NIT/Tender Enquiry/SCC, no later than the time and date stated in the NIT/Tender Enquiry.

18.2 The Employer may, in exceptional circumstances and at his discretion, extend the deadline for submission of bids by issuing an amendment in accordance with **ITB Clause 8.0** above, in which case all rights and obligations of the Employer and the Bidders previously subject to the original deadline shall thereafter be subject to the deadline as extended.

19.0 LATE BID SECURITY AND INTEGRITY PACT

Any Bid Security (or extension thereof) and/or Integrity Pact (If applicable); bid received by the Employer after the bid submission deadline prescribed by the Employer, pursuant to **ITB Clause 18**, will be rejected and returned unopened to the Bidder.

20.0 MODIFICATION, SUBSTITUTION AND WITHDRAWAL OF BID

- 20.0 Bid Modification and Withdrawal: The Bidder may modify or withdraw its bid after submission prior to the deadline prescribed for bid submission. In case of withdrawal a letter giving the reason for withdrawal. Once a bid is withdrawn, the bid cannot be re-submitted.

No bid may be withdrawn / modified in the interval between the bid submission deadline and the expiration of the bid validity period. Withdrawal/Modification of a bid during this interval may result in the Bidder's forfeiture of its Earnest Money Deposit, pursuant to ITB Clause 14.7(a) above.

- 20.1 No bid may be withdrawn in the interval between the bid submission deadline and the expiration of the bid validity period specified in Clause 13.0 of ITB.

Withdrawal of a bid during this interval may result in the Bidder's forfeiture of its Earnest Money Deposit, pursuant to ITB Sub-Clause 14.7(a).

PART E - BID OPENING AND EVALUATION**21.0 BID OPENING**

The bids will be opened at the time, date and location notified in the NIT/IFB/Tender Enquiry in the presence of the Bidder's authorized representatives (not exceeding two per Bidder) who choose to attend. All-important information's and any such other detail, as may be considered appropriate by the Employer will be read out during the bid opening.

22.0 CLARIFICATION OF BIDS

Bidder's attention is drawn that during the period, the bids are under consideration, the Bidder is advised to refrain from contacting by any means, the Employer and/or his employees/representatives on matters related to the bids under consideration and that if necessary, the Employer will obtain clarifications from the Bidder in writing. Any effort by a Bidder to influence the Employer's processing of bids or award decisions will result in the rejection of the Bidder's bid.

During the bid evaluation the Employer may, at its discretion, ask the Bidder for a clarification of its bid including documentary evidence pertaining to only the Work Orders/Purchase Orders/Letter of Awards/Contract Agreements declared in the bid for the purpose of meeting Qualifying Requirement specified in NIT/Bidding Documents. The request for clarification and the response shall be in writing and no change in the price or substance of the bid including substitution of reference Work Orders/Purchase Orders/Letter of Awards/Contract Agreements in the bid by new/additional Work Orders/Purchase Orders/Letter of Awards/Contract Agreements for conforming to Qualifying Requirement shall be sought, offered or permitted.

23.0 EVALUATION AND COMPARISON OF BIDS**23.1 BID EVALUATION**

- 23.1.1 The Employer will initially determine whether each bid is of acceptable quality, is generally complete and is substantially responsive to the Bidding Documents. For purposes of this determination, a substantially responsive bid is one that conforms to all the terms, conditions and specifications of the Bidding Documents without material deviations,

objections, conditionalities or reservations. A material deviation, objection, conditionality or reservation is one (i) that affects in any substantial way the scope, quality or performance of the contract; or (ii) that limits in any substantial way, inconsistent with the Bidding Documents, the Employer's rights or the Bidder's obligations under the contract; or (iii) whose rectification would unfairly affect the competitive position of other Bidders who are presenting substantially responsive bids.

- 23.1.2 The Employer's determination of a bid's responsiveness is to be based on the contents of the bid itself without recourse to extrinsic evidence. If a bid is not substantially responsive, it will be rejected by the Employer, and may not subsequently be made responsive by the Bidder by correction of the non-conformity.

23.2 Arithmetical Correction

Arithmetical errors in the bid will be rectified on the following basis:

If on check there are found to be differences between the rates/prices given by the Bidder in words and figures or in the amount worked out by him in the Schedule of Quantities and General Summary, the same shall be adjusted in accordance with the following rules:

- (a) In the event of a discrepancy between description in words and figures in respect of item rates quoted by a Bidder, the description in words shall prevail.
- (b) In the event of an error occurring in the amount column of Schedule of Quantities as a result of wrong extension of the quantity and the unit rate, the units shall be regarded as firm and extension shall be amended on the basis of the unit rate.
- (c) All errors in totaling in the amount column and in carrying forward totals shall be corrected.
- (d) The totals of various sections of Schedule of Quantities amended shall be carried over to the General Summary and the bid sum amended accordingly. The bid sum so altered shall, for the purpose of bid, be substituted for the sum originally bid and considered for evaluation and comparison of the bids and also for acceptance of the bid, instead of the original sum quoted by the Bidder.

- 23.3 The evaluation shall be based on the evaluated cost of fulfilling the contract in compliance with all commercial, contractual and technical obligations under this Bidding Document.

23.4 Abnormally High or Low Rated Items

If the rates/prices quoted by the successful Bidder for certain items of the Schedule of quantities are found to be abnormally high or low in relation to the Employer's estimate of the cost of work to be performed under the Contract, then Employer may require the Bidder to produce detailed rate/price analysis for such items of the Schedule of Quantities, to demonstrate the internal consistency of these rates/prices with the construction methods and schedule proposed. After evaluation of the rate/price analysis, Employer may require that the amount of the Security Deposit be increased at the expense of the successful Bidder to a level sufficient to protect Employer against financial loss in the event of default by the Contractor under the Contract, to carry out such low rated items of work, subject to the provisions of **GCC Sub-Clause 45.2** titled 'Permissible deviation limit for variation in Contract items'. Further, the Employer will require the Contractor to provide a suitable undertaking to execute the item(s) of Work to the extent of quantities up to the variation limits.

23.5 Post-Qualification

- 23.5.1 The Employer will determine to its satisfaction whether the Bidder is qualified to satisfactorily perform the contract, in terms of the Qualifying Requirements (QR) stipulated

in NIT/IFB/Tender Enquiry and other criteria detailed elsewhere in the bidding documents.

- 23.5.2 The determination will take into account the Bidder's capabilities, based upon examination of the documentary evidence of the Bidder's qualifications submitted by the Bidder in the **Attachments – 3 and 4** as well as such other information as the Employer deems necessary and appropriate. The Employer reserves the right to assess the capabilities and capacity of the Bidder to perform the contract, should the circumstances warrant such assessment in the overall interest of the Employer.
- 23.5.3 An affirmative determination will be a prerequisite for award of the contract to the Bidder. A negative determination will result in rejection of the Bidder's bid.
- 23.5.4 The capabilities of the vendors and subcontractors, proposed in **Attachment - 4**, to be used by the lowest evaluated Bidder, will also be evaluated for acceptability. Their participation should be confirmed with a letter of intent between the parties, as needed. Should a vendor or subcontractor be determined to be unacceptable, the bid will not be rejected, but the Bidder will be required to substitute an acceptable vendor or subcontractor without any change in the bid price, prior to award.

PART F - AWARD OF CONTRACT

24.0 AWARD CRITERIA

Subject to **ITB Clause 26.0**, the Employer will award the Contract to the Bidder whose bid has been determined to be substantially responsive to the Bidding Documents and whose bid has been adjudged as the lowest evaluated bid, provided that such Bidder has been determined to be qualified to perform the contract satisfactorily.

25.0 EMPLOYER'S RIGHT TO ACCEPT OR REJECT ANY OR ALLBIDS

Notwithstanding **ITB Clause 24.0**, the Employer reserves the right to accept, (whole or in part) and the Bidder shall be bound to perform the same at his quoted rate, or reject any bid for any reasons including national defense and security consideration and to annul the bidding process and to reject all bids at any time prior to award of contract without thereby incurring any liability to the affected Bidder or Bidders or any obligation to inform the affected Bidder or Bidders of the grounds for the Employer's action. Decision of Employer shall be final and binding in this regard.

26.0 LETTER OF AWARD

- 26.1 Prior to the expiration of the bid validity prescribed by the Employer, the Employer will issue a Letter of Award (LOA) / Service / Purchase Order to the successful Bidder containing reference of the documents which form the Contract, Scope of Work, Contract Price, period of completion of the Works, terms of payment, price adjustment, and other important aspects in consideration of the execution and completion of the Works and the remedying of any defects therein by the Contractor as prescribed by the Contract.
- 26.2 This Letter of Award / Purchase Order will constitute the formation of the Contract.
- 26.3 Prior to the expiration of the bid validity prescribed by the Employer, the Employer can issue a Brief Letter of Award (LOA) to the successful Bidder containing reference of the tender, offer and Contract Price. This brief letter of award shall constitute the formation of the Contract.

27.0 SIGNING OF CONTRACT AGREEMENT

- 27.1 The Successful Bidder / Contractor shall enter into a Contract Agreement with the Employer within thirty (30) days from the date of Letter of Award or within such other time,

as may be desired by the Employer. The Contract Agreement shall be executed on a non-judicial Stamp Paper of appropriate value.

27.2 Manner of Execution of Contract Agreement

- i) Unless and until a formal contract is prepared and executed, the Letter of Award / Purchase Order read in conjunction with the Bidding Documents will constitute a binding contract.
- ii) The Contract Agreement shall be prepared by the Employer and signed at the office of the Employer. The Contract Agreement will be signed in three originals and the Contractor shall be provided with one signed original and the other two originals will be retained by the Employer.
- iii) The Contractor shall provide free of cost to the Employer all the engineering data, drawings and descriptive materials submitted as a part of his bid, in at least three (3) copies to form an integral part of the Contract Agreement within twenty-eight (28) days after issuing of Letter of Award / Purchase Order. The Contractor shall further provide for signing of the Contract Agreement as per prescribed proforma enclosed in the Bidding Documents, appropriate Power of Attorney and the requisite stamp papers. All the other documents required for the preparation of the Contract Agreement shall be provided by the Employer.
- iv) Unless and until the Contract Agreement is signed as above, no payments under the Contract as per GCC Clauses entitled 'Payment On Account / Progressive Interim Payments' and 'Time Limit for Submission & Payment of Final Bill' shall be released to the Contractor by the Employer nor any materials shall be issued to the Contractor as stipulated in the Special Conditions of Contract or otherwise agreed to be issued by the Employer.
- v) **Subsequent to signing of the Contract Agreement, the Contractor at his own cost shall provide to the Employer with at least three (3) true copies of Contract Agreement within twenty-eight (28) days of its signing. The Contractor will also provide one (1) electronic version of the Contract Agreement to the Employer within thirty (30) days of its signing.**

28.0 INELIGIBILITY FOR FUTURE TENDERS

Notwithstanding the provisions regarding forfeiture of Bid Security specified in **ITB Sub-Clause 14.7**, if a Bidder after having been issued the Letter of Award/ Purchase Order, either does not accept the same or does not sign the Contract Agreement or does not submit an acceptable Initial Security Deposit/Entire Security in line with the provisions of the Contract and which results in tender being annulled then such bidder shall be treated ineligible for participation in re-tendering of this particular package.

29.0 ADHERENCE TO FRAUD PREVENTION POLICY

The Bidder/Contractor along with its associate / collaborators / sub-contractors / sub-vendors / consultants / service

providers shall strictly adhere to the Fraud Prevention Policy of Employer displayed on website <http://www.ntpctender.ntpc.co.in> The Bidder/Contractor shall immediately apprise the Employer about any fraud or suspected fraud as soon as it comes to their notice.

A certificate to this effect shall be furnished by the bidder along with his bid by accepting the Attribute "Acceptance of Fraud Prevention Policy of NTPC".

If in terms of above policy, it is established that the bidder/his representatives have committed any fraud while competing for this contract then the Employer shall be entitled to disqualify the Bidder(s)/ Contractor(s) from the bidding process and forfeit the bid security. In addition to the

above, if the Bidder has committed a fraud such as to put his reliability or credibility into question, the Employer shall be entitled to exclude including blacklist and put the Bidder on holiday for any future e-tenders /contracts award process. The exclusion will be imposed for a minimum of 3years.